

NCIA SUPPLIER CODE OF BUSINESS ETHICS AND CONDUCT

I SCOPE AND APPLICABILITY

This Supplier Code of Business Ethics and Conduct (“**Code**”) sets out the standards and principles expected of all entities doing business with, or seeking to do business with, the NATO Communications and Information Agency (“**NCIA**”), referred to hereafter as “**Suppliers**”.

Suppliers are responsible for ensuring that the principles of this Code are effectively communicated to and complied with by their employees and are flowed down and observed throughout their supply chain, including, without limitation, any parent undertakings, subsidiaries, affiliates and subcontractors.

Upon execution of a contract with NCIA, this Code shall form an integral and legally binding part thereof (NCIA Contract General Terms and Conditions (GTC) Clause G.A. 3.3) and any failure to comply may result in corrective actions, suspension or termination of the contract and business relationship, at NCIA’s discretion.

NCIA reserves the right, at any time, to request information or documentation reasonably necessary to demonstrate compliance with this Code, whether such request is triggered by disclosures made pursuant to provision 10.1 of this Code or by a reasonable suspicion of non-compliance arising on any other basis.

II HUMAN RIGHTS COMMITMENT AND APPLICABLE LABOUR AND ENVIRONMENTAL STANDARDS

1. Human Rights Commitment

- 1.1** Suppliers shall conduct their business in a manner that respects fundamental human rights¹ and shall maintain fair, safe and dignified working conditions. Suppliers shall not engage in abusive, coercive or other practices that would reasonably be considered improper or unduly pressuring towards its workforce. Suppliers shall not conduct or benefit from operations or activities where they knew or reasonably should have known that such operations or activities cause or materially contribute to serious foreseeable harm to the rights, health, safety, or living conditions of local or Indigenous communities. Further guidance on how these expectations are to be met is provided in provisions 2 and 3 of this Code.
- 1.2** Suppliers shall take reasonable steps, appropriate to the nature, size, and risk profile of their operations and business relationships, to identify, prevent, mitigate and remediate actual or potential adverse human rights impacts arising from their activities.
- 1.3** Where local laws, regulations, or binding governmental orders restrict the exercise of human rights, Suppliers shall promptly and transparently disclose these restrictions to NCIA, including their nature and the legal basis. Such restrictions shall not be used to justify additional limitations on human rights or to introduce, extend or aggravate any restriction beyond what is strictly required by the applicable laws, regulations, or orders.

2. Labour Standards

¹ For the purposes of interpretation and assessment under this Code, “fundamental human rights” may be understood by reference to internationally recognised principles, including those reflected in the Universal Declaration of Human Rights, the International Labour Organisation’s (ILO) Declaration on Fundamental Principles and Rights at Work and, where applicable, the European Convention on Human Rights.

- 2.1 Forced Labour:** Suppliers shall not use forced labour, in any form, including involuntary, bonded, indentured or trafficked labour. All work, including overtime, must be performed voluntarily. Suppliers shall not require their workforce to hand over or deposit government-issued identification, passports or work permits as a condition of employment, nor impose restrictions that prevent individuals from leaving their employment.
- 2.2 Child and Underage Labour:** Suppliers shall not employ individuals below the minimum age of employment established by applicable national law, and in no case under the age of 15. Suppliers shall verify age through reliable and verifiable documentation and maintain effective procedures to prevent the recruitment of under-age individuals. Suppliers shall further ensure that individuals under the age of 18 are not assigned to hazardous work, insofar as such work may reasonably present heightened risks to their health, safety or development.
- 2.3 Wage, Benefits and Working Hours:** Suppliers shall ensure that the wages and benefits they provide are fair, paid on time, and compliant with applicable laws, and shall not be diminished by punitive or arbitrary deductions. Suppliers are expected to avoid sourcing from regions or operating in environments where wages or benefits are so low as to constitute exploitation by reasonable international standards. They shall also ensure that working hours, rest periods, and leave comply with applicable law, and are managed in a way that does not create conditions that could be considered forced labour, as prohibited under provision 2.1 of this Code.
- 2.4 Health and Safety:** Suppliers shall provide and maintain a safe, healthy, and secure working environment at all locations where work is performed or services are provided, including any accommodation, catering, or similar facilities provided or arranged by the Supplier. At a minimum, the following shall be in place: appropriate water and sanitation, safe equipment and work processes, effective fire and emergency measures, adequate environmental conditions (e.g. lighting and ventilation), proper management of hazardous substances, suitable personal protective equipment and access to treatment for occupational injuries and illnesses.
- Suppliers shall also provide comprehensive health and safety training and maintain effective oversight mechanisms to monitor, enforce, and continuously improve workplace health and safety.
- 2.5 Non-Discrimination and Equal Treatment:** Suppliers shall provide equal employment opportunity without discrimination on grounds of race, ethnic origin, nationality, political, philosophical, religious opinions, health, disability, gender or sexual orientation. Where local laws, regulations or binding governmental orders lawfully impose restrictions on such principles, Suppliers are required to comply with the disclosure requirements set out in provision 1.3 of this Code.

3. Responsible Environmental Practices

To the extent relevant to Suppliers' performance under their contract with NCIA, and taking into account the nature and scale of their operations:

- 3.1 Suppliers shall comply, in all material respects, with applicable environmental laws and regulations and conduct their business in a manner designed to minimise environmental risks and impacts associated with their operations, products and supply chains.
- 3.2 Suppliers shall take commercially reasonable steps to address material environmental impacts associated with their operations and, where appropriate, support ongoing improvement in environmental performance, consistent with sound industry practices.
- 3.3 Suppliers shall ensure the safe and lawful handling and management of hazardous substances (including chemicals and other materials), waste (including wastewater and solid waste) and emissions. Suppliers shall employ measures to identify, monitor, control and treat these, thereby ensuring their safe transport, storage, reuse, recycling and disposal.
- 3.4 Suppliers shall notify the relevant authorities, as required by applicable law, of any material accidental or uncontrolled release of hazardous substances, waste and emissions and shall inform NCIA where such an incident could reasonably be expected to affect contractual performance or pose significant reputational risk to NCIA.
- 3.5 In addition to provisions 3.1 - 3.4 of this Code, NCIA may, where reasonable and appropriate, establish measurable environmental and sustainability performance objectives, taking guidance from recognised industry or international frameworks².

III BUSINESS ETHICS

For the purposes of the following provisions and to ensure clarity, the term "NCIA personnel" means all civilian and military personnel working for or on behalf of NCIA, as well as any seconded staff and contractors of any kind, regardless of location, grade, or seniority.

- 4. **Corruption and Bribery:** Suppliers shall adhere to the highest standards of ethical conduct, and shall comply with all applicable anti-corruption and anti-bribery laws in the jurisdictions in which they operate, regardless of any local customs or practices that may suggest conduct to the contrary is acceptable. By way of example, Suppliers shall not, directly or indirectly, offer, promise, give, request or accept bribes, facilitation payments, kickbacks or other improper benefit, nor engage in extortion, fraud or any other corrupt practice, whether involving public officials or private entities.
- 5. **Fair Competition:** Suppliers shall compete fairly for business opportunities and not conclude any formal or informal anti-competitive arrangements that aim to fix prices, allocate territory, collude, rig bids, or otherwise distort fair competition for market share.

² Examples of frameworks NCIA may draw on include the UN Sustainable Development Goals, the Paris Agreement, ISO 14001, and GRI Standards. These are illustrative only and do not create binding obligations; any performance objectives will be agreed with Suppliers as appropriate.

6. Conflicts of Interest: Suppliers shall disclose to NCIA any situation in which NCIA personnel has a direct or indirect financial or personal interest in the Supplier, or any relationship that could reasonably be perceived as giving the Supplier an undue advantage in the award or execution of a contract.

7. Gifts and Hospitality

7.1 Suppliers shall not offer, promise, or give - directly or indirectly - any gifts or hospitality³ to NCIA personnel or their dependents.

7.2 By way of a narrow and strictly construed exception to provision 7.1 of this Code, gifts or hospitality of modest value may be permissible where they fall within normal and generally accepted standards of courtesy and propriety, are lawful, infrequent, and are neither intended to influence, nor have the actual, potential or perceived effect of influencing any NCIA decision-making process. NCIA reserves the right to determine, in its sole discretion, whether any benefit falls within this exception.

7.3 Suppliers acknowledge that, in accordance with NCIA's applicable internal policies, NCIA personnel are required to report the offer, acceptance, or refusal of any gifts or hospitality, and Suppliers shall not seek to prevent, discourage, or otherwise influence such reporting.

8. Competitive and Pre-Competitive Engagement

8.1 Suppliers shall not seek engagement or exchange with NCIA personnel relating to ongoing or upcoming procurement projects, contracts, or capability development, unless in the presence of, or facilitated by the NCIA Acquisition Office, specifically a Contracting Officer or an Industry Relations representative.

8.2 Suppliers shall not attempt to influence procurement decisions through gifts, hospitality (as prohibited under provision 7 of this Code), or any other means that could improperly influence NCIA personnel responsible for decision-making.

8.3 Suppliers shall not solicit, imply, or communicate any endorsement by NCIA or NATO of their products, services, or themselves, unless they have obtained prior written approval from the NCIA Acquisition Office. Any unauthorised statements or claims of endorsement are strictly prohibited.

8.4 Suppliers shall disclose to NCIA's Acquisition Office any invitations extended to NCIA personnel to attend events, whether as participants or speakers. For any such events attended, Suppliers shall provide the names of attending NCIA personnel, the purpose and location of the event, any associated costs, and details of any gifts or hospitality offered. All information shall be submitted to IndustryRelations@ncia.nato.int within 30 business days of the event.

9. Post-Employment Restrictions

9.1 Suppliers shall be aware that NCIA internal policies prohibit NCIA personnel with decision-making authority over contract awards or primary project oversight from accepting

³ Meaning any tangible or intangible benefit, including but not limited to gifts, payments, favours, loans, tickets, passes, transportation, food, drink, accommodation, entertainment, training courses, or other similar advantages.

employment, consultancy, or other professional engagements with any Supplier with whom they were directly involved during the two (2) years preceding their departure from NCIA.

- 9.2** NCIA reserves the right not to engage former NCIA personnel as consultants, contractors, or commercial counterparts nominated by a Supplier. Exceptions may be granted at the discretion of NCIA's General Manager, provided that applicable rules on double remuneration are observed. These restrictions are designed to protect NATO-sensitive information and to prevent the transfer of undue competitive advantage to Suppliers.

IV DISCLOSURE AND REPORTING OBLIGATIONS

NCIA upholds the highest standards of integrity, and its mission must not be compromised by actual or perceived impropriety. Suppliers play a key role in maintaining these standards and are required to report any behaviour that may breach this Code. NCIA provides reporting channels and welcomes full cooperation to foster transparency, accountability, and ethical conduct.

10. Supplier Disclosure and Reporting

- 10.1** Suppliers holding an active contract with NCIA shall promptly report any known or suspected non-compliance with this Code to the NCIA Contracting Officer responsible for the contract. Any such disclosure, together with steps taken to remediate the issue, will be considered positively when assessing ongoing or future contracts with the Supplier.

- 10.2** In addition to self-disclosure referred to in provision 10.1 of this Code, Suppliers (current and prospective) shall promptly report any known or suspected instances of fraud, waste, abuse, or other misconduct affecting NCIA resources, or breaches of this Code, regardless of who is involved (e.g., NCIA personnel, other Suppliers, subcontractors, or third parties). Examples of reportable concerns include, but are not limited to:

- a. Irregularities in bidding or procurement processes;
- b. Collusive practices (e.g., price fixing);
- c. Corruption and bribery;
- d. Manipulation of technical or contractual specifications to favour particular parties;
- e. Falsification or misrepresentation of records, credentials, or data;
- f. Misrepresentation of qualifications, experience, or capabilities;
- g. Undisclosed or improperly managed conflicts of interest.

- 10.3** Reports referred to under provision 10.2 of this Code shall be submitted in good faith to integrityline@ncia.nato.int. All reports, whether submitted anonymously or not, will be treated confidentially. To enable effective investigation and follow-up, Suppliers are encouraged to provide as much factual detail as possible, including points of contact where available.